



AkzoNobel - Axalta

MN-50024

Phase 1 Determination

Acquisition may be put into effect

21 July 2026

1. Determination and statement of reasons

Notified acquisition	Akzo Nobel N.V. (AkzoNobel)'s and Axalta Coating Systems Ltd. (Axalta)'s proposed entry into a merger agreement (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, AkzoNobel, is a global paints and coatings manufacturer headquartered in Amsterdam, the Netherlands. AkzoNobel produces and markets paints and coatings, including automotive and speciality coatings, powder coatings, industrial coatings, and marine and protective coatings, for professional, do-it-yourself, and industrial end users. The target, Axalta, is a global coatings manufacturer and distributor headquartered in Philadelphia, USA. Axalta supplies a range of coating solutions, including vehicle refinish coatings for light vehicles, commercial vehicles, electric motors, and building facades.
Overlap between the parties	AkzoNobel and Axalta overlap in the supply of vehicle refinish and powder coatings in Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The market share aggregation in vehicle refinish products in Australia as a result of the Acquisition is estimated to be low. • In relation to the supply of powder coating products in Australia, despite concerns raised in third-party feedback regarding consolidation, Axalta is a relatively small competitor so there will be a very small increase in the market share of the merged entity, and the merged entity would continue to face competition from other competitors. • In relation to the supply of vehicle refinish in Australia, the merged entity would continue to face competition from alternative large, established suppliers, as well as many smaller

	competitors.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**